

25IWUD00432 25IWUD00432

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The Defendant Brenda George filed motions to vacate the judgment entered July 1, 2026, stay that judgment, or set a new trial. For the reasons stated below, the court DENIES the motions.

Motion to Vacate Under Code of Civil Procedure Section 663

Code of Civil Procedure section 663 "empowers a trial court, on motion of "[a] party . . . entitl[ed] . . . to a different judgment" from that which has been entered, to vacate its judgment and enter "another and different judgment." (Garibotti v. Hinkle (2015) 243 Cal.App.4th 470, 476.) "[A] motion to vacate lies only where a "different judgment" is compelled by the facts found. [Citation.] A motion to vacate under section 663 may only be brought when "the trial judge draws an incorrect legal conclusion or renders an erroneous judgment upon the facts found by it to exist." [Citation.] 'In ruling on a motion to vacate the judgment the court cannot "in any way change any finding of fact.'"" (Id. at p. 477.)

George argues she is entitled to a different judgment because "Plaintiff's authorized property representative permitted Defendant to occupy the premises temporarily," "Plaintiff knowingly accepted rent through the named tenant while Defendant remained in possession," and "Defendant's occupancy was therefore authorized for a period acknowledged by Plaintiff's own representative." Even assuming the second fact is true (and the Statement of Decision makes clear that the evidence on that issue was unclear), George cites no authority concluding those facts render the judgment erroneous. Indeed, based on the same facts George lists and citing numerous authorities, the court concluded there was no landlord-tenant relationship.

George also argues the judgment is somehow inconsistent with the court's own findings. George fails to identify any such inconsistency. Instead, she appears to argue she did not consent to a non-jury trial and that the judgment failed to take account of certain categories of evidence. George fails to cite any procedural history of the case concerning her right to a jury trial. She also fails to cite any evidence admitted or that she sought to have admitted at trial.

Motion for New Trial

"A new trial may be granted where there is an '[i]rregularity in the proceedings.' ([Code Civ. Proc.], § 657, subd. (1).) An 'irregularity in the proceedings' is a catchall phrase referring to any act that (1) violates the right of a party to a fair trial and (2) which a party 'cannot fully present by exceptions taken during the progress of the trial, and which must therefore appear by affidavits.'" (Montoya v. Barragan (2013) 220 Cal.App.4th 1215, 1229–1230.) George contends "irregularities" included "the removal of the scheduled jury trial," "misleading communications regarding the July 7, 2025 hearing," "alleged representations that surrender of possession would conclude the litigation," "continuation of the action solely for money damages after possession was surrendered," "exclusion of material evidence and witness testimony," and the Statement of Decision is inconsistent because it concludes there was no landlord-tenant relationship but awarded the Plaintiff "holdover" damages.

Taking each argument in turn: (1) George waived her right to a jury trial by failing to appear for that trial on July 7, 2025, as noted in the minute order of that day. On August 25, 2025 the matter was reset for a non-jury trial, and George never requested otherwise despite numerous appearances. George also proceeded to trial on June 24, 2026 without requesting or perfecting any request for a jury trial. (2) George does not identify the allegedly misleading communications regarding the July 7, 2025 hearing. (3) George does not identify any relevant representations by declaration or affidavit. (4) There is nothing "irregular" about continuing an action for damages only after possession is no longer at issue. (5) George identifies no material evidence or witnesses excluded from the trial. (6) So-called holdover damages may be awarded any time an occupant (whether or not that person is a "tenant") remains in possession of a property at the expiration of the notice period.

George argues under Code of Civil Procedure section 657, subdivision (6), that the evidence was insufficient to justify the judgment. George fails to address and distinguish any of the authorities cited in the Statement of Decision or any authorities supporting her argument. Most of the relevant portion of her brief appears to be copied and pasted from an artificial intelligence ("AI") source that poses ideas or questions to George without making actual arguments or citing any authorities.

Next George argues the judgment made certain legal errors. For the most part George repeats arguments the court has already addressed in this ruling, fails to cite any authority to support her arguments, and again appears to have copied and pasted advice and suggestions from an AI source. Regarding George's arguments concerning the calculation of damages, George neither contends nor cites any evidence or proceedings at trial showing she did not have notice and an opportunity to be heard on those issues.

Motion for a Stay of Enforcement

Because the court denies George's motions to vacate the judgment and for a new trial, the court also denies her motion to stay enforcement of the judgment.